

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ELHADJI M. TOURE,

Index No.

Plaintiff(s)

Date Filed:

-against-

SUMMONS

Plaintiff designates
Bronx County as the
place of trial;

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, NEW YORK CITY
POLICE OFFICER AGUILA, and
NEW YORK CITY POLICE OFFICER "JOHN DOE",

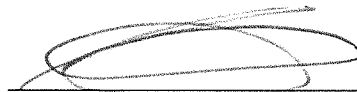
The basis of the
venue is County
where incident occurred

Defendant(s)

To the above named Defendant(s)

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: April 14, 2017
New York, New York



BRETT M. GROSSMAN
GROSSMAN & GROSSMAN, P.C.
Attorneys for Plaintiff
360 Lexington Avenue, 12th Floor
New York, New York 10017
(212) 616-8177

To:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE OFFICER AGUILA
c/o THE NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

ELHADJI M. TOURE,

Index No.

Plaintiff(s)

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, NEW YORK CITY
POLICE OFFICER, AGUILA, and
NEW YORK CITY POLICE OFFICER "JOHN DOE",

Defendant(s)

Plaintiff, by his attorneys, GROSSMAN & GROSSMAN, P.C., as and for his Verified

Complaint, respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF
OF THE PLAINTIFF, ELHADJI M. TOURE

1. That at all times herein mentioned the plaintiff, ELHADJI M. TOURE, was and is a resident of the County of Bronx, City and State of New York.

2. That at all times hereinafter mentioned the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing under and by virtue of the Laws of the State of New York.

3. That at all times hereinafter mentioned the defendant, THE CITY OF NEW YORK, maintained, operated and controlled the Police Department within The City of New York.

4. That at all times hereinafter mentioned the defendant, THE CITY OF NEW YORK, employed police officers, in its police force.

5. That at all times hereinafter mentioned, defendant NEW YORK CITY

POLICE OFFICER AGUILA, was employed by the defendant, THE CITY OF NEW YORK and or the defendant THE NEW YORK CITY POLICE DEPARTMENT.

6. That at all times hereinafter mentioned, defendant NEW YORK CITY POLICE OFFICER AGUILA, was a servant, agent and/or employee of the defendant, THE CITY OF NEW YORK, and or THE NEW YORK CITY POLICE DEPARTMENT and was acting within the scope of his employment.

7. That at all times hereinafter mentioned, defendants NEW YORK CITY POLICE OFFICER "JOHN DOE" was employed by the defendant, THE CITY OF NEW YORK and or the defendant THE NEW YORK CITY POLICE DEPARTMENT.

8. That at all times hereinafter mentioned, defendants NEW YORK CITY POLICE OFFICER "JOHN DOE" was a servant, agent and/or employee of the defendant, THE CITY OF NEW YORK and or THE NEW YORK CITY POLICE DEPARTMENT, and were acting within the scope of his employment.

9. That on or about the 24th day of January 2016, the plaintiff, ELHADJI M. TOURE, was lawfully at or near 215 East 161st Street, in the County of Bronx, City and State of New York.

10. That on or about the 24th of January, 2016, while the plaintiff, ELHADJI M. TOURE, was lawfully at or near 215 East 161st Street, in the County of Bronx, City and State of New York., the defendants, their agents, servants and/or employees, intentionally, and without legal justification, unlawfully and unreasonably arrested and or imprisoned and or detained and or restrained the plaintiff, ELHADJI M. TOURE, without probable cause.

11. That at all times herein mentioned, the plaintiff, ELHADJI M. TOURE, was falsely arrested and or imprisoned and or detained and or restrained by police officers of THE CITY

OF NEW YORK and or THE NEW YORK CITY POLICE DEPARTMENT and or POLICE OFFICER AGUILA and or POLICE OFFICER “JOHN DOE”, who were agents, servants and/or employees of the defendant, and who were acting within the scope of their employment.

12. That as a result of the false imprisonment and or false arrest of the plaintiff, ELHADJI M. TOURE, by the defendants, their agents, servants and/or employees, the plaintiff suffered severe emotional distress, trauma, humiliation, embarrassment, ridicule, scorn, deprivation of civil rights and freedom.

13. That the false arrest and or imprisonment of the plaintiff, ELHADJI M. TOURE, constituted a malicious act, and was a wanton and reckless degradation of the plaintiff's liberty and freedom.

14. That heretofore and on or about the 27th day of May, 2016, and within one year and ninety days after the cause of action herein accrued, there was served upon THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, a Verified Notice of Claim, which set forth the nature of this claim herein, including the time and place where the incident occurred, and the nature and extent of the injuries sustained by the plaintiff. Said Verified Notice of Claim was duly served upon the defendant, within one year and ninety days after the occurrence of said incident as set forth herein.

15. That less than one year and ninety days have elapsed since the occurrence of the said incident upon which the complaint is based.

16. The defendants have wholly refused and neglected to make any adjustment or payment thereof.

17. That this action falls within one or more of the exceptions set forth in Section 1602 of the CPLR.

18. That by reason of the foregoing, the plaintiff, ELHADJI M. TOURE, has been damaged in a sum which exceeds the jurisdictional limits of all courts lower than the Supreme Court.

AS AND FOR A SECOND CAUSE OF ACTION ON
BEHALF OF THE PLAINTIFF, ELHADJI M. TOURE

19. That plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "18", with the same force and effect as though more fully set forth at length herein.

20. That on or about the 24th day of January, 2016, the defendant, THE CITY OF NEW YORK and or THE NEW YORK CITY POLICE DEPARTMENT and or POLICE OFFICER AGUILA and or POLICE OFFICER "JOHN DOE", their agents, servants and/or employees, without cause of justification, or the consent of the plaintiff, did place the plaintiff in fear of imminent physical harm.

21. That by reason of the foregoing the plaintiff, ELHADJI M. TOURE, has been damaged in a sum which exceeds the jurisdictional limits of all courts lower than the Supreme Court.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF
OF THE PLAINTIFF, ELHADJI M. TOURE

22. That the plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "21", with the same force and effect as though more fully set forth at length herein.

23. That on or about the 24th day of January, 2016, the defendant, THE CITY OF NEW YORK and or THE NEW YORK CITY POLICE DEPARTMENT and or POLICE OFFICER AGUILA and or POLICE OFFICER "JOHN DOE", their agents, servants and/or employees, without cause or justification and without the consent of the plaintiff, did wantonly and unlawfully engage in unlawful physical contact with the plaintiff, causing serious physical injury to the plaintiff.

24. That as a result of the foregoing assault and battery on the part of the defendant, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT and or POLICE OFFICER AGUILA and or POLICE OFFICER "JOHN DOE", their agents, servants and/or employees, as aforesaid, the plaintiff was rendered sick, sore, lame and disabled; was caused to suffer emotional injuries; has suffered and will continue to suffer agony in body and mind; was and will be rendered unable to attend to his usual duties; and will be compelled to secure medical aid and treatment, in an endeavor to minimize his injuries, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

25. That by reason of the foregoing, the plaintiff, ELHADJI M. TOURE, has been damaged in a sum which exceeds the jurisdictional limits of all courts lower than the Supreme Court.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF
OF PLAINTIFF, ELHADJI M. TOURE

26. That the plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "25", with the same force and effect, as though more fully set forth at length herein.

27. That as a result of the foregoing, the defendants, through the acts of their Police Officers, wilfully and wantonly violated the civil rights of the plaintiff, ELHADJI M. TOURE.

28. That the defendants, through their acts, the acts of the Police Officers, deprived the plaintiff, ELHADJI M. TOURE, of his civil rights under the color of law. They are liable to the plaintiff in an action pursuant to Title 42 Section 1983, of the United States Code. That the Police Officers as individuals and through their actions as employees, and other police officers, acting within the scope of their duties, under color of law, deprived the plaintiff, ELHADJI M.

TOURE, of his civil rights, privileges, and/or immunities, secured by the Constitution of the United States, and of the State of New York, and they are liable to the plaintiff, pursuant to Title 42 Section 1983 of the United States Code.

29. That the defendants deprived the plaintiff of his civil rights, privileges and immunities, secured by the Constitution and the Laws of the United States, including violating his Fourteenth Amendment Right, rights of due process, his First Amendment Right, his Fourth Amendment Right, his property rights, and his right of privacy.

30. That the defendants' depriving the plaintiff of his civil rights, acted under color of state and local law.

31. That the defendants depriving the plaintiff of his constitutional rights, acted under color of statute, ordinance, regulation, custom or usage of the Laws of the State of New York, and misused power which they possessed by virtue of State Law.

32. That the defendant acted pursuant to official policy and/or governmental customs.

33. That as a result of the foregoing the plaintiff, ELHADJI M. TOURE, sustained damages in a sum which exceeds the jurisdictional limits of all courts lower than the Supreme Court.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF
OF PLAINTIFF, ELHADJI M. TOURE

34. That plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "33", with the same force and effect, as though more fully set forth at length herein.

35. That the defendants, by their police officers, agents, servants and/or

employees, engaged in actions intended to inflict emotional trauma on the plaintiff, ELHADJI M. TOURE.

36. That by reason of the foregoing the plaintiff, ELHADJI M. TOURE, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action.

37. That as a result of the foregoing the plaintiff, ELHADJI M. TOURE, sustained damages in a sum which exceeds the jurisdictional limits of all courts lower than the Supreme Court.

AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF
OF PLAINTIFF, ELHADJI M. TOURE

38. That plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "37", with the same force and effect, as though more fully set forth at length herein.

39. That at all times herein mentioned the police officers involved in the incident complained of herein were negligently hired and/or trained and/or supervised and/or retained by the defendants.

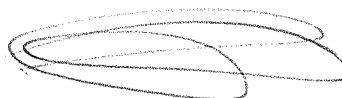
40. That as a result of the negligent retention, hiring and training of these police officers and employees, negligently and improperly carried out their duties in arresting, in imprisoning, and in prosecuting the plaintiff.

41. That as a result of the foregoing the plaintiff, ELHADJI M. TOURE, sustained damages in a sum which exceeds the jurisdictional limits of all courts lower than the Supreme Court.

WHEREFORE, the plaintiff, ELHADJI M. TOURE, demands judgment against the defendant, in the First Cause of Action, in a sum which exceeds jurisdictional limits of all lower

courts; the plaintiff demands judgment against the defendant, in the Second Cause of Action, in a sum which exceeds the jurisdictional limits of all lower courts; the plaintiff demands judgment against the defendant, in the Third Cause of Action, in a sum which exceeds the jurisdictional limits of all lower courts; the plaintiff demands judgment against the defendant, in the Fourth Cause of Action, in a sum which exceeds the jurisdictional limits of all lower courts; the plaintiff demands judgment against the defendant, in the Fifth Cause of Action, in a sum which exceeds the jurisdictional limits of all lower courts; the plaintiff demands judgment against the defendant, in the Sixth Cause of Action, in a sum which exceeds the jurisdictional limits of all lower courts, together with the costs, interest and disbursements of this action;

Dated: April 14, 2017
New York, New York



BRETT M. GROSSMAN
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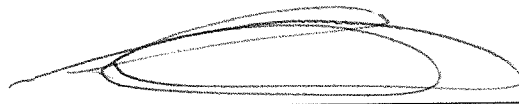
STATE OF NEW YORK,
COUNTY OF NEW YORK SS:

I, the undersigned, am an attorney admitted to practice in the Courts of New York State, and say that: I am the attorney of record, or of counsel with the attorney(s) of record, for the Plaintiff. I have read the annexed COMPLAINT know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon information contained in the file.

The reason I make this affirmation instead of Plaintiff is that Plaintiff does not reside in the County in which Affirmant maintains offices.

I affirm that the foregoing statements are true under penalties of perjury.

Dated: New York, New York
April 14, 2017

A handwritten signature in dark ink, appearing to read "Brett M. Grossman", written over a horizontal line.

Brett M. Grossman

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ELHADJI M. TOURE,

Plaintiff,

-against

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, NEW YORK CITY
POLICE OFFICER AGUILA, and
NEW YORK CITY POLICE OFFICER "JOHN DOE",

Defendants.

SUMMONS AND VERIFIED COMPLAINT

Signature (Rule 130.1.1.a)



Brett M. Grossman

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